

Indian Industries Association v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 4 December 2017 · Writ-C No. 63165 of 2015 · **Writ dismissed as not made out / infructuous; stay vacated.**

HEADNOTE

Writ by an industrial association challenging an office memorandum directing a third consumer to be tapped onto its 11 kV dedicated industrial feeder, invoking Clause 3.4(d) of the Electricity Supply Code, 2005, dismissed. The High Court held the petitioner had not made out a case for interference and that the petition appeared infructuous or abandoned; the 2015 stay was vacated. Clause 3.4(d) was not construed.

FACTUAL SUMMARY

The petitioner Association challenged an Office Memorandum dated 2 September 2015 directing that M/s Arjoo Industries be tapped, on cost-sharing, onto the petitioner's 11 kV dedicated industrial Faridpur feeder from 33/11 kV Andharpura Sub-Station. Invoking Clause 3.4(d) of the Electricity Supply Code, 2005 and Government Orders of 21 September 2012 and 4 October 2012, it sought quashing of the memorandum and a restraint on tapping without consent. The memorandum had been stayed in November 2015; when the petition was called in revised on 4 December 2017, counsel for the petitioner was absent.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::3.4(d)

tapping of dedicated industrial feeder

HOLDING

A writ seeking to quash an office memorandum directing tapping of a third consumer onto the petitioner's 11 kV dedicated industrial feeder, and to restrain such tapping under Clause 3.4(d) of the Electricity Supply Code, 2005 and related Government Orders, was dismissed. After perusing the record in the petitioner's absence, the Court held that no case for interference was made out and that the cause of action appeared no longer to survive or the petition had become infructuous; the earlier stay of the memorandum was vacated. Clause 3.4(d) was not construed. ¶ 3-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER CLAUSE 3.4(D) OF THE ELECTRICITY SUPPLY CODE, 2005 AND THE GOVERNMENT ORDERS DATED 21 SEPTEMBER 2012 AND 4 OCTOBER 2012 BAR TAPPING OF A THIRD CONSUMER ONTO AN INDEPENDENT DEDICATED INDUSTRIAL FEEDER WITHOUT THE ORIGINAL CONSUMER'S CONSENT.

The Court dismissed the writ without construing Clause 3.4(d) or the Government Orders. ¶ 3-4